

10. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: FOR TRIAL PREFERENCE (CCP 36)
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by Plaintiff Rassoul Malboubi for trial preference. For the reasons set forth, the motion for trial preference is **DENIED, WITHOUT PREJUDICE** as set forth below.

Background

This action involves a dispute by plaintiff Rassoul Malboubi over decisions by the City of Richmond and Hector Lopez, at the time one of the City's senior planners in the planning department, concerning a duplex owned by plaintiff Rassoul Malboubi located on 24th Street in the City of Richmond. (First Am. Compl. ("FAC") ¶¶ 1-3.) The City has represented in prior pleadings that Mr. Lopez retired as a City planner on August 16, 2025. Plaintiff filed his FAC on February 2, 2026. For convenience, the Court refers to the City and Mr. Lopez collectively as the "City Defendants."

In his FAC, Mr. Malboubi alleges multiple causes of action against the City Defendants, including a petition for writ of mandate and declaratory relief, abuse of discretion, misapplication of the municipal code, failure to perform a mandatory duty, a separate cause of action for declaratory relief, and injunctive relief. Plaintiff has filed a motion for trial preference under Code of Civil Procedure section 36(a) based on his age and health conditions, or alternatively, for discretionary trial preference under Code of Civil Procedure section 36(e). Defendants oppose the motion.

Legal Standards for Ruling on Motion for Trial Preference

Code of Civil Procedure section 36(a) provides that if a party is over 70 years old, the party may request a trial preference "which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." If the conditions of Code of Civil Procedure section 36(a) are met, granting a trial preference is mandatory. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 533; *Miller v. Superior Court* (1990) 221 Cal.App.3d 1200, 1204; *Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 692.) The cases recognize that Code of Civil Procedure section 36 "was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted." (*Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 532.) (See also *Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515 [quoting *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 88-89 that based on the legislative history, " 'the purpose of subdivision (a) to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.' [Citation omitted.]".])

"Mere inconvenience to the court or to other litigants is irrelevant. [Citation omitted.] Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36. The trial court has no power to balance the differing interests of opposing litigants in applying the provision.

The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations. [Citation omitted.]" (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085-1086 [emphasis added].)

Proof that preference is necessary under Code of Civil Procedure section 36(a) based on the health of the party is based on a preponderance of the evidence standard and does not require medical evidence from a physician. (*Fox, supra*, 21 Cal.App.5th at 533-534.) The testimony of the party or the party's counsel is sufficient to support a finding under the second prong of the two-prong test of Code of Civil Procedure § 36(a). (*Id.* at 534; Code Civ. Proc. § 36.5.) The party may submit an affidavit (or declaration) in support of the motion attesting to "the medical diagnosis and prognosis" of the party to support the motion for trial preference under Code of Civil Procedure section 36. (Code Civ. Proc. § 36.5.)

Proof of the party's potential death or disability in the next six months is also not required under Code of Civil Procedure section 36(a). (*Fox, supra*, 21 Cal.App.5th at 534 ["Section 36, subdivision (a), says nothing about 'death or incapacity.' . . . The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's '*health* . . . is such that a preference is necessary *to prevent prejudicing [her] interest in the litigation.*' (Italics added.)"].)

Plaintiff has alternatively moved for a trial preference in the Court's discretion under Code of Civil Procedure section 36(e). That provision states: "Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference."

"Responses" to Defendants' Opposition

Mr. Malboubi filed a "Response" to the City Defendants' memorandum in opposition to the motion, and a separate "Response" to the declaration of Kevin Siegel filed in support of the City Defendants' opposition, a second memorandum with argument. Code of Civil Procedure section 1005(b) governing motions provides for a "reply" to an opposition. (*See also* Cal. R. Ct., Rule 3.1113(d) [referring to "reply or closing memorandum" on a motion].) The Court understands Mr. Malboubi's "Responses" are intended to be a "reply" but the Court admonishes Mr. Malboubi to use the terminology provided in the statute and rules in future filings.

A reply to an opposition is limited to 10 pages in length. (Cal. R. Ct., Rule 3.1113(d).) The two "Responses" collectively exceed the 10 page limit under the applicable rule. The Court will consider the two Responses, but the Court expects compliance by Mr. Malboubi with the applicable rules in future filings.

Analysis

Mr. Malboubi declares that he is 75 years old and that he has "hypertension controlled by medication and a coronary stent." (Malboubi Decl. ¶¶ 1, 2.) His declaration in support of his moving papers, which is dated October 13, 2025, referred to a doctor's note, which was not attached. Mr. Malboubi has supplied a doctor's note with his reply, a letter dated February 20, 2026 from Dr. Clifton Watt who states with regard to Mr. Malboubi's condition that (a) Mr. Malboubi is under the doctor's care

for "cardiovascular-related medical concerns, including symptoms requiring diagnostic cardiac stress testing," (b) minimizing stress would be beneficial to his cardiac health," and (c) if Mr. Malboubi "is undergoing a legal matter," then the doctor hopes "that this can be resolved as promptly as reasonably possible." (Exh. A to Malboubi Resp.)

A. Mandatory Trial Preference Under Code of Civil Procedure Section 36(a)

Defendant opposes the motion and argues Plaintiff has not demonstrated that his age and physical condition warrant a trial preference. There is no dispute that Plaintiff is over 70 years old (he is 75) and meets the age threshold. (Code Civ. Proc. § 36(a).) He is the sole plaintiff, and there is also no dispute that based on his allegations in the FAC, he has a substantial interest in the action. (Code Civ. Proc. § 36(a)(1).)

What is disputed is whether Mr. Malboubi's evidence of his health condition meets the standard of the statute for mandatory trial preference "that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc. § 36(a)(2) [emphasis added].) One of his medical conditions is hypertension which he acknowledges is "controlled by medication." The other condition is that he has a coronary stent. His doctor indicates only generally that Mr. Malboubi is "under [] care for cardiac-related medical concerns" and his "symptoms" require stress tests. (Exh. A to Malboubi Resp.) His doctor only suggests generically that "minimizing stress" would be beneficial to Mr. Malboubi's health. (Exh. A to Malboubi Resp.) The evidence does not show that a trial preference is "necessary" so that Mr. Malboubi's interest in the litigation will not be prejudiced, such as by Mr. Malboubi not being able to present or prosecute his claims through trial.

The Court finds that the evidence is insufficient to demonstrate granting Plaintiff a trial preference and setting trial within 120 days of the determination of this motion, roughly in early July 2026, is "necessary to prevent prejudicing [Plaintiff's] interest in the litigation" because of Plaintiff's health conditions as reflected in the evidence before the Court. (Code Civ. Proc. § 36(a).) (*Compare, e.g., to Fox, supra*, 21 Cal.App.5th at 532, 535 [evidence from plaintiff's counsel, medical records, and plaintiff's declaration that 81-year old plaintiff had Stage IV lung cancer, cancer had metastasized to her femur, clavicle, and spine, plaintiff also suffered from asbestosis, asbestos-related pleural disease, severe coronary artery disease, and anemia, and plaintiff was undergoing chemotherapy treatments that caused her severe physical and mental impairments, including confusion and forgetfulness and an inability to perform "basic life functions," such that there was a valid concern plaintiff would not be able to participate in the case much longer based on her deteriorating health].)

B. Discretionary Trial Preference Under Code of Civil Procedure Section 36(e)

The Court does not find a "balancing" or weighing of relative prejudice is permitted in determining a motion for mandatory trial preference under Code of Civil Procedure section 36(a) based on the language of the statute and the case law construing it; if the conditions of section 36(a)(1) and (2) are met, trial preference is mandatory. (*Fox, supra*, 21 Cal.App.5th at 533; *Miller, supra*, 221 Cal.App.3d at 1204; *Swaithes, supra*, 212 Cal.App.3d at 1085-1086.) Code of Civil Procedure section 36(e), which allows the Court in its discretion to grant trial preference, explicitly requires the Court to consider whether "the interests of justice will be served by granting this preference." (Code Civ. Proc. § 36(e).)

The Court has considered Plaintiff's evidence of his medical condition, his indicated intention to file a second amended complaint when the City's document production is complete (Resp. p. 5, ll. 11-15),

the upcoming hearings on discovery, and that there is a case management conference set for June 9, 2026 after the pending discovery motions should be resolved. The Court takes into consideration Mr. Malboubi's evidence regarding "minimizing stress" by resolving the litigation as soon as "reasonably possible," but the Court does not find that the record on this motion shows that the interests of justice will be served in this case by granting the discretionary trial preference motion and setting a trial date for early July 2026.

Conclusion, Ruling, and Notes on Upcoming Hearings and CMC

For the reasons stated, the motion for mandatory or discretionary trial preference under Code of Civil Procedure sections 36(a) and 36(e) is **DENIED, WITHOUT PREJUDICE**. The Court denies the motion without prejudice to make it explicit that if there is a material change in circumstances and if additional facts arise, including evidence of a deterioration in Mr. Malboubi's health conditions, that make trial preference necessary to prevent prejudice to Plaintiff's interest in the case (Code Civ. Proc. § 36(a)), or that change the considerations regarding whether the interests of justice would be served by granting trial preference (Code Civ. Proc. § 36(e)), Plaintiff may renew the motion.

The case has been pending since July 31, 2025, approximately seven months. Despite the Court's ruling on the trial preference motion based on the evidence before it, the Court also does not intend to allow this litigation to be unduly delayed given the narrow scope of the claims, which generally involve whether Mr. Malboubi's Richmond property should be permitted to be converted to a condominium or subdivided into two lots, and if so, on what conditions. The Court's register of actions shows that there is a case management conference scheduled for June 9, 2026, which follows a series of hearings on pending discovery disputes based on discovery motions filed by Mr. Malboubi that are set between March 2, 2026 and May 4, 2026. At the upcoming CMC, the parties should be prepared to address the timing for closing discovery, the conduct of mediation or a settlement conference, and the setting of a trial date.

11. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. DOES 1-50
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a demurrer to plaintiff's first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N. Also before the Court on this calendar are a motion to strike plaintiff's first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N. and a joinder in the demurrer by defendant Dr. Joseph Toscano. For the reasons set forth, the Court **CONTINUES** the hearing on the demurrer, motion to strike and joinder to **9:00 a.m. on May 11, 2026**.

The Court further **ORDERS** that the hearings on the demurrers and motions to strike filed by other defendants challenging Plaintiff's first amended complaint, presently set for hearing on various dates from April 13, 2026 to June 8, 2026, to be **CONTINUED OR ADVANCED AND RESET** for hearing at **9:00**